

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harry Feigen	Team: Squad #04	CCRB Case #: 201500892	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Wednesday, 09/03/2014 6:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/3/2016	Precinct: 79		
Date/Time CV Reported Mon, 02/09/2015 8:29 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 02/09/2015 8:29 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			NARCBBN
2. An officer			NARCBBN
3. DT3 Eric Giuliani	4136	947032	NARCBBN
4. DT3 Keith Mcdowell	01381	935280	NARCBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Michael Weber	04578	929343	NARCBBN
2. DT3 Matthew Massa	02058	937039	NARCBBN
3. DT3 Madelline Stewart	00147	918882	NARCBMS
4. DT3 Edward Najarro	4674	945431	NARCBBN

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers entered and searched § 87(2)(b) in Brooklyn.	A . Exonerated
B . DT3 Keith Mcdowell	Discourtesy: Det. Keith Mcdowell spoke rudely to § 87(2)(b)	B . Unsubstantiated
C . DT3 Eric Giuliani	Discourtesy: Det. Eric Giuliani spoke rudely to § 87(2)(b)	C . Unsubstantiated
D . An officer	Off. Language: An officer made remarks to § 87(2)(b) based upon sex.	D . Alleged Victim Uncooperative

Case Summary

§ 87(2)(b) filed this complaint with the CCRB by phone on February 9, 2015 (Encl. 2B).

On September 3, 2014, at approximately 6:00 a.m., § 87(2)(b) was asleep inside of his apartment, which is located at § 87(2)(b), in Brooklyn. § 87(2)(b) was sleeping in his bedroom, and his § 87(2)(b) daughter, § 87(2)(b) was asleep in a second bedroom, along with § 87(2)(b) s § 87(2)(b) niece, § 87(2)(b). No other individuals were in the apartment.

§ 87(2)(b) was woken up by a loud noise. He then saw the front door of his apartment get broken down, and several police officers subsequently walked into the apartment (**Allegation A**). Det. Eric Giuliani, Det. Edward Najarro, and Det. Keith McDowell entered § 87(2)(b) s bedroom, and § 87(2)(b) asked to see a warrant. Det. McDowell told § 87(2)(b) “Shut the fuck up” (**Allegation B**). The officers told § 87(2)(b) to get on his stomach, and he complied. While § 87(2)(b) was being placed in handcuffs, he asked the officers several more times to show him a warrant, and Det. Giuliani told him to “Shut the fuck up” in each instance (**Allegation C**).

While § 87(2)(b) was still in his bedroom with the officers, he heard officers in the other bedroom speaking to § 87(2)(b) and § 87(2)(b). § 87(2)(b) asked the officers if she could put clothes on, and an unidentified female officer told her, “Shut up, bitch” (**Allegation D**).

§ 87(2)(b) was brought out to the kitchen. Several minutes later, § 87(2)(b) and § 87(2)(b) were brought to the kitchen as well. All three were brought down to a police van, and were held inside the van for approximately an hour. They were then transported to the 79th Precinct stationhouse. § 87(2)(b) was charged with § 87(2)(b).

§ 87(2)(b) and § 87(2)(b) were released from the 79th Precinct without any charges or summonses issued.

Mediation, Criminal, and Civil Histories

This case was not eligible for mediation, due to § 87(2)(b) s arrest. § 87(2)(b) [§§ 86(1)(2)&(4)] [§ 87(2)(c)] A notice of claim request was submitted to the Comptroller’s office, and will be added to the case file upon receipt (Encl. 7A).

Civilian and Officer CCRB Histories

This is § 87(2)(b) s first CCRB complaint (Encl. 1D). Det. McDowell has been a member of service for ten years. There are no substantiated complaints against him, § 87(2)(g). Det. Giuliani has been a member of service for six years. There are no substantiated complaints against him, § 87(2)(g).

Findings and Recommendations

Explanation of Subject Officer Identification

Det. McDowell was interviewed at the CCRB on April 9, 2015 (Encl. 3U). In his statement, he denied that he ever entered § 87(2)(b)'s bedroom, and also denied having any conversation with § 87(2)(b) inside of the apartment. § 87(2)(b) described the officer who entered his bedroom first as a 6'2" tall, 35 year-old, 300 pound black male with a short haircut. Det. McDowell's NYPD photograph (Encl. 3P) lists him as a 6'1" tall, 37 year-old, 295 pound black male with short hair. § 87(2)(g)

There were no other black male police officers executing the search warrant who reasonably match this description (Encl. 4A-F).

Additionally, in Det. McDowell's statement, he claimed that he carried a ram during the execution of the search warrant, and broke down the front door of the apartment. The Tactical Plan confirms that Det. McDowell was the only officer executing the warrant who was assigned to a ram. In Det. Giuliani's statement (Encl. 4L), he stated that § 87(2)(b)'s bedroom was locked when the officer's first entered the apartment, and that an officer had to break the door down.

§ 87(2)(g)

§ 87(2)(b) was not present in the room where an officer told § 87(2)(b) to, "Shut up, bitch," but he believed the statement was made by a female officer based on what he could hear from his bedroom. § 87(2)(b) only saw one female officer present during the execution of the search warrant, but he did not know her name, and could only give a vague description of the officer.

None of the officers who testified identified a female officer who was present during the execution of the search warrant. All of the officers listed on the Search Warrant Execution Plan (Encl. 4L-M) are male, although there was a "Det. Stewart" listed who could not be found on CTS, and thus could potentially be a female officer. The Tactical Plan does not provide a first name or tax registry number for the detective, and the Brooklyn North Narcotics roll call from the date of the incident does not list a Det. Stewart (Encl. 4G-H). A CTS search indicated that there is only one female detective with the last name Stewart in the NYPD: Madelline Stewart of Manhattan South Narcotics. On April 16, 2015, Det. Stewart was interviewed at the CCRB (Encl. 3Y). On September 3, 2014, she was assigned to the Manhattan South Narcotics command, and she had an administrative assignment inside of the stationhouse. § 87(2)(g)

§ 87(2)(g)

Allegations not pleaded

- § 87(2)(g)

- § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

- § 87(2)(g)

Allegation A – Abuse of Authority: Officers entered and searched
§ 87(2)(b) **in Brooklyn.**

It is undisputed that officers from the Brooklyn North Narcotics command entered and searched § 87(2)(b) in Brooklyn on September 3, 2014. It is also undisputed that a valid search warrant was obtained for this location on § 87(2)(b) (Encl. 4Q-R). It is therefore recommended that **Allegation A** be closed as **exonerated**.

Allegation B – Discourtesy: Det. Keith McDowell spoke rudely to § 87(2)(b)
Allegation C – Discourtesy: Det. Eric Giuliani spoke rudely to § 87(2)(b)

It is undisputed that Det. Giuliani was in the group of officers that first entered § 87(2)(b) § 87(2)(b)'s bedroom during the execution of the search warrant. § 87(2)(g)

§ 87(2)(b) was interviewed at § 87(2)(b) on February 27, 2015 (Encl. 2D-E). In his statement, § 87(2)(b) alleged that upon the officers' entry into his bedroom, he asked to see a search warrant, and Det. McDowell told him to "Shut the fuck up." While the officers placed § 87(2)(b) in handcuffs, he alleged that he asked several more times to see a search warrant, and that Det. Giuliani told him to "Shut the fuck up" in each instance.

In Det. McDowell's statement, he denied entering § 87(2)(b)'s bedroom at any point during the execution of the search warrant, and he denied hearing § 87(2)(b) ask to see a search warrant. Det. McDowell denied telling § 87(2)(b) to "Shut the fuck up," and he denied hearing any other officer say that to § 87(2)(b).

In Det. Giuliani's statement, he claimed that upon entering § 87(2)(b)'s bedroom, he ordered § 87(2)(b) to show him his hands and then get down on the floor. § 87(2)(b) complied and did not say anything to the police officers. Det. Giuliani did not recall if § 87(2)(b) asked to see a warrant. He denied telling § 87(2)(b) to "Shut the fuck up," and he also denied hearing any other officer make that statement.

In Det. Najarro's statement (Encl. 30), he did not recall if he entered § 87(2)(b)'s bedroom, nor did he recall interacting with § 87(2)(b). Det. Najarro denied hearing an officer tell § 87(2)(b) to "Shut the fuck up."

§ 87(2)(g)

It is therefore recommended that **Allegations B and C** be closed as **unsubstantiated**.

Allegation D – Offensive Language: An officer made remarks to § 87(2)(b) based upon sex.

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **victim uncooperative**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date